



CHAPTER xvii.

An Act to extend the time limited by the Bute Docks and Cardiff Railway Acts for the purchase of certain lands and for the completion of certain works and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS under the Bute Docks (Transfer) Act 1886 the Bute Docks Company were incorporated and became the owners of the Bute Docks at Cardiff in the county of Glamorgan:

And whereas the Bute Docks Company were empowered by the Bute Docks (Further Powers) Act 1886 (hereinafter called "the Act of 1886") the Bute Docks Act 1888 (hereinafter called "the Act of 1888") the Bute Docks Act 1894 (hereinafter called "the Act of 1894") and the Bute Docks Act 1895 (hereinafter called "the Act of 1895") to construct sea walls or embankments for the purpose of reclaiming a portion of the foreshore or land known as the Cardiff Flats:

And whereas by the Cardiff Railway Act 1897 (hereinafter called "the Act of 1897") the Bute Docks Company were authorised to construct certain railways in the county of Glamorgan and the name of the Company was changed and is now the Cardiff Railway Company (in this Act called "the Company"):

And whereas the Cardiff Railway Acts 1898 1899 1901 1903 1904 1906 1908 1910 and 1912 have been subsequently passed and those Acts are hereinafter respectively referred to as the Acts of 1898 1899 1901 1903 1904 1906 1908 1910 and 1912:

And whereas it is expedient that the times respectively limited for the completion of the sea walls or embankments

A.D. 1914. authorised by the Acts of 1886 1888 1894 and 1895 and that the times respectively limited by the Acts of 1897 1898 1899 1901 1903 1904 1906 1908 1910 and 1912 for the compulsory purchase of certain lands and for the completion of certain works be extended as in this Act provided:

And whereas it is expedient to confer upon the Company powers with regard to the removal of wrecks and other obstructions:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and collective titles.

1. This Act may be cited as the Cardiff Railway Act 1914 and the Bute Docks and Cardiff Railway Acts 1865 to 1912 may be cited together with this Act as the Bute Docks and Cardiff Railway Acts 1865 to 1914.

Incorporation of Part II. of Railways Clauses Act 1863.

2. Part II. (Extension of time) of the Railways Clauses Act 1863 (so far as it is applicable for the purposes of and is not varied by or inconsistent with this Act) is hereby incorporated with this Act.

Extension of time for completion of embankments.

3. The periods respectively limited by section 13 of the Act of 1895 for the completion of the sea walls or embankments authorised by the Acts of 1886 and 1888 and by section 17 of the Act of 1894 for the completion of the sea walls or embankments authorised by that Act and by section 12 of the Act of 1895 for the completion of the sea wall or embankment authorised by that Act are hereby respectively extended for a period of twenty years from the passing of this Act and the said respective sections shall be read and have effect accordingly.

Extension of time for acquisition of lands.

4. The periods respectively limited—

(A) By section 54 of the Act of 1897 as amended by section 26 of the Act of 1899 and by section 3 of the Act of 1901 and by section 21 of the Act of 1904 and by section 17 of the Act of 1906 and by section 10 of the Act of 1908 and by section 3 of the Act of 1910 and by section 3 of the Act of

1912 for the compulsory purchase of lands for the purposes of the railways and works authorised by the Act of 1897 (other than Railways Nos. 1 and 4 and the pier and pier railway) so far as the construction of the same has not been abandoned under the Act of 1904; A.D. 1914.

- (B) By section 7 of the Act of 1898 as amended by section 3 of the Act of 1901 and by section 21 of the Act of 1904 and by section 17 of the Act of 1906 and by section 10 of the Act of 1908 and by section 3 of the Act of 1910 and by section 3 of the Act of 1912 for the compulsory purchase of lands for the purposes of Railways Nos. 1 3 and 7 authorised by the Act of 1898 so far as the construction of the same has not been abandoned under the Acts of 1899 and 1903;
- (c) By section 8 of the Act of 1899 as amended by section 3 of the Act of 1901 and by section 21 of the Act of 1904 and by section 17 of the Act of 1906 and by section 10 of the Act of 1908 and by section 3 of the Act of 1910 and by section 3 of the Act of 1912 for the compulsory purchase of lands for the purposes of Railways Nos. 3 5 and 7 authorised by the Act of 1899 and for the compulsory purchase of the lands described in section 4 of that Act;
- (D) By section 7 of the Act of 1903 as amended by section 17 of the Act of 1906 and by section 10 of the Act of 1908 and by section 3 of the Act of 1910 and by section 3 of the Act of 1912 for the compulsory purchase of lands for the purposes of Railway No. 2 authorised by the Act of 1903;
- (E) By section 5 of the Act of 1904 as amended by section 17 of the Act of 1906 and by section 10 of the Act of 1908 and by section 3 of the Act of 1910 and by section 3 of the Act of 1912 for the compulsory purchase of lands for the purposes of the railway authorised by the Act of 1904;
- (F) By section 7 of the Act of 1906 as amended by section 10 of the Act of 1908 and by section 3 of the Act of 1910 and by section 3 of the Act of

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1912 for the compulsory purchase of lands for the purposes of the railway authorised by the Act of 1906 ;

- (G) By section 6 of the Act of 1908 as amended by section 3 of the Act of 1910 and by section 3 of the Act of 1912 for the compulsory purchase of lands for the purposes of Railway No 2 authorised by the Act of 1908 and for the compulsory purchase of lands described in section 21 of the Act of 1908 as amended by section 3 of the Act of 1910 and by section 3 of the Act of 1912 ;

are hereby respectively extended until the fifteenth day of August one thousand nine hundred and sixteen and the above-mentioned sections shall be read and have effect accordingly.

Extension of power as to certain other lands.

5. The power of compulsory purchase of lands for the purposes of the road described in section 4 of the Act of 1897 as revived by section 22 of the Act of 1904 and amended by section 19 of the Act of 1906 and by section 11 of the Act of 1908 and by section 4 of the Act of 1910 and by section 4 of the Act of 1912 may be exercised at any time within the period of two years from the fifteenth day of August one thousand nine hundred and fourteen.

Extension of time for completion of works.

6. The periods respectively limited—

- (A) By section 5 of the Act of 1897 as amended by section 26 of the Act of 1899 and by section 4 of the Act of 1901 and by section 24 of the Act of 1904 and by section 18 of the Act of 1906 and by section 13 of the Act of 1908 for the completion of the railways and works (other than the pier and pier railway) authorised by the Act of 1897 so far as the construction of the same has not been abandoned ;
- (B) By section 38 of the Act of 1897 as amended by section 18 of the Act of 1906 and by section 13 of the Act of 1908 for the completion of the pier railway authorised by the Act of 1897 ;
- (C) By section 11 of the Act of 1898 as amended by section 4 of the Act of 1901 and by section 24 of the Act of 1904 and by section 18 of the Act of 1906 and by section 13 of the Act of 1908 for the completion of Railways Nos. 1 3 and 7 authorised by the Act of 1898 so far as the construction of the same has not been abandoned ;

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- (D) By section 14 of the Act of 1908 for the completion of the portion of Railway No. 1 authorised by the Act of 1899 and revived by that section;
- (E) By section 15 of the Act of 1908 for the completion of Railway No. 2 authorised by the Act of 1899 and revived by that section;
- (F) By section 12 of the Act of 1899 as amended by section 4 of the Act of 1901 and by section 24 of the Act of 1904 and by section 18 of the Act of 1906 and by section 13 of the Act of 1908 for the completion of Railways Nos. 3 4 5 6 and 7 authorised by the Act of 1899;
- (G) By section 14 of the Act of 1903 as amended by section 18 of the Act of 1906 and by section 13 of the Act of 1908 for the completion of Railway No. 2 authorised by the Act of 1903;
- (H) By section 11 of the Act of 1904 as amended by section 13 of the Act of 1908 for the completion of the railway authorised by the Act of 1904;
- (I) By section 9 of the Act of 1906 as amended by section 13 of the Act of 1908 for the completion of the railway authorised by the Act of 1906;
- (J) By section 7 of the Act of 1908 as amended by section 5 of the Act of 1910 for the completion of Railway No. 2 authorised by the Act of 1908;

are hereby extended until the fifteenth day of August one thousand nine hundred and nineteen.

7. For the protection of the lord mayor aldermen and citizens of the city of Cardiff (in this section called "the corporation") the following provisions shall have effect unless otherwise agreed between the corporation and the Company (that is to say):—

For protection of corporation of Cardiff.

- (1) The provisions contained in subsections (5) (7) and (17) of section 11 of the Act of 1897 subsections (19) (22) and (24) of section 15 of the Act of 1898 and subsections (3) (5) and (11) of section 6 of the Act of 1899 so far as they relate to the water mains or sewers of the corporation shall extend and apply mutatis mutandis to the electric mains of the corporation but with the variation that instead of the Company being bound to maintain the portion of

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any electric main which may be crossed endangered or interfered with the Company shall pay to the corporation from time to time any additional expense which the corporation may incur in maintaining any electric main beyond the expense which would have been incurred by the corporation in maintaining the same if it had not been so crossed endangered or interfered with :

- (2) In this section the expression "electric mains" includes electric mains cables wires pipes standards and other electric apparatus and appliances belonging to the corporation :
- (3) Subsection (18) of section 6 of the Act of 1899 shall be and the same is hereby repealed and in lieu thereof the provisions contained in the next succeeding subsection hereof shall apply :
- (4) Where Railway No. 7 authorised by the Act of 1899 crosses the Roath Brook and the premises of the electric power and tramways station and workshops of the corporation on the deposited plans numbered 37 41 and 42 in the parish of Roath the Company shall construct and maintain a flat girder bridge to be built in two spans of not less than forty-seven feet each and having a clear height or headroom of not less than fourteen feet above the rail level of the coal siding of the corporation forming part of the premises numbered 37 41 and 42 on the said plans The said bridge shall be erected as nearly as may be in accordance with the plan marked "A" signed in duplicate by Henry Strutt Collett Ree on behalf of the Company and by William Harpur on behalf of the corporation :
- (5) Notwithstanding anything in the Act of 1899 contained the Company shall not without the consent of the corporation purchase or take any portion of the lands belonging or reputed to belong to the corporation and held by them for the purpose of the electrical power and tramways station referred to in the preceding subsection except so much thereof as is coloured red on the said plan marked "A" nor shall they interfere with any such other land of the corporation (otherwise than temporarily and so far as may be actually necessary for the purpose of the

construction of their works) except by the bridge to be constructed as aforesaid but the Company may purchase and take and the corporation shall sell and grant unto them an easement or right of constructing and maintaining in perpetuity the said bridge and the railway and works of the Company upon or over the same :

(6)—(A) If at any time before the actual construction of the bridge over Railway No. 3 provided for in subsection (7) of section 15 of the Act of 1898 the corporation shall have constructed or caused to be constructed or made substantial progress with the construction of a new bridge in the position shown by a green colour on the plan marked "B" signed in duplicate by Henry Strutt Collett Ree on behalf of the Company and by William Harpur on behalf of the corporation in lieu of the existing bridge carrying Waterloo Road over the Taff Vale Railway the Company will if the corporation and the Right Honourable Lord Tredegar so desire construct the bridge first above mentioned and the road approaches thereto in the position shown by a red colour on the said plan "B" unless any other position shall be required or determined upon within the meaning of that subsection ;

(B) Inasmuch as the bridge to be constructed by the Company as last aforesaid is intended to carry over the railway of the Company a new road proposed to be carried over the Taff Vale Railway by means of the said intended new bridge over that railway the Company shall if the said bridge over the Taff Vale Railway and the new road in the position coloured green upon the said plan shall be constructed before the Company commence the construction of their railway at this point construct pave channel and kerb so as to be ready for use contemporaneously with and by way of continuation of the said intended new road over the Taff Vale Railway a roadway over their property of the width of fifty feet throughout which after being constructed by the Company shall thereafter be maintained by the corporation for the use of the public (but subject to the right of the Company to construct their

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railway as hereinafter provided) and in the meantime and until such new road of the Company shall be constructed shall allow the existing footway over the property of the Company to be maintained and used as at present Provided always that on the completion of the said new road the said existing footway may be stopped up by the Company and any public rights over the same shall cease Provided also that if and when the Company shall desire to construct their said railway after the construction of the said road they shall be at liberty to do so subject to their constructing the bridge hereinbefore mentioned for carrying the said road over the railway and complying (so far as the same may be applicable) with the provisions of the Railways Clauses Consolidation Act 1845 with regard to carrying roads over railways and that the said bridge shall for ever be maintained by the Company but the road over the same and the property of the Company after being constructed by the Company shall be maintained by the corporation for the use of the public ;

- (c) In consideration of the obligations hereby imposed upon the Company with respect to the bridge and roadway last hereinbefore mentioned the obligation of the Company to construct the bridge mentioned in section 15 subsection (8) of the Act of 1898 shall cease and determine and the obligations imposed upon the Company by this subsection are conditional upon the said Lord Tredegar waiving any claim to insist upon the construction of the said last mentioned bridge.

For protection of
Pontypridd
Urban District Council.

8. The following provisions for the protection and benefit of the Pontypridd Urban District Council (in this section called "the council") shall unless otherwise agreed in writing between the council and the Company apply and have effect (that is to say) :—

- (1) Notwithstanding anything contained in the Act of 1904 or in this Act or in any Act for the purpose of amending or extending the provisions of the Act of 1904 and notwithstanding anything shown upon the plans deposited in respect of the Bill for the said

Act of 1904 the Company shall not enter on take or use any part of so much of the lands numbered respectively 19 and 23 on those plans as are coloured pink upon a plan signed in duplicate by Henry Adolphus Roberts secretary of the Company on behalf of the Company and by John Colenso Jones clerk of the council on behalf of the council:

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(2) The provisions of paragraphs 20 to 24 both inclusive and paragraphs 26 and 27 of the agreement made the fourth day of March one thousand eight hundred and ninety-seven between the Bute Docks Company of the one part and the council of the other part which agreement is scheduled to and confirmed by the Act of 1897 shall be read and have effect as if electricity mains cables wires and apparatus belonging to the council were referred to wherever gas mains or pipes are referred to therein and as if those paragraphs extended and applied to such electricity mains cables wires and apparatus:

(3) The said paragraphs 20 to 24 both inclusive and 26 and 27 as respectively amended by the last preceding subsection of this section shall extend and apply to the execution of any works by the Company under or in pursuance of the Act of 1904 or the Act of 1906 or any Act amending either of those Acts.

9.—(1) Whenever any vessel is sunk stranded or abandoned in or near the Bute Docks at Cardiff or any approach thereto the Company may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear such docks or approach therefrom.

Removal of
stranded or
sunk vessels.

(2) The Company may cause any such vessel and the furniture tackle and apparel thereof or any part thereof respectively which shall be raised or saved and also all or any part of the cargo goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise

A D. 1914 — controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto:

Provided always that the Company shall before selling any such cargo goods chattels or effects as aforesaid pay all duties which may be payable to His Majesty in respect to the cargo goods chattels or effects to be sold and they may retain the amount of the duties so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of sale are insufficient to reimburse the Company for the aforesaid expenses the Company may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the person who at the time of the sinking stranding or abandonment of the vessel was the registered owner of the vessel or from the executors or administrators of such owner as a debt either summarily as a civil debt or in any court of competent jurisdiction.

(4) If on demand being made under this provision for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbitrator to determine and award whether any and what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Board of Trade that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

(5) The powers given to the Company by subsection (1) of this section shall not be exercised if the registered owner of the vessel sunk stranded or abandoned shall within twenty-four hours after the vessel shall have been stranded or sunk take such steps as may in the opinion of the dock master of the said docks be necessary for the raising or removal of the vessel and shall thenceforth continuously and diligently and to the satisfaction of such dock master prosecute and do all such works and things as may in the opinion of the dock master be necessary

and proper for the raising and removal of the vessel as speedily as possible. A.D. 1914.

(6) The powers conferred by this section on the Company shall be in addition to and not in derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

10. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by the Acts relating to the Company.

Provision as to general Railway Acts.

11. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act shall be paid by the Company.

Costs of Act.

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